

24CMCV00337 24CMCV00337

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-03

Motion: DEFENDANT'S MOTION TO COMPEL DEPOSITION QUESTIONS

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Case Number: 24CMCV00337 Hearing Date: August 3, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

E.G., et al.,

Plaintiffs,

vs.

LOS

ANGELES UNIFIED SCHOOL DISTRICT,

Defendant.

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CASE NO: 24CMCV00337

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO COMPEL DEPOSITION QUESTIONS

Dept.

A

DATE:

August 3, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 03/11/2024

1st

AMENDED COMPLAINT FILED: 04/24/2024

TRIAL:

08/31/2026

MOVING

PARTY: Plaintiff E.G.

RESPONDING

PARTY: Defendant Los Angeles Unified
School District

1.

Background

Plaintiff E.G.

("Plaintiff") alleges that on September 11, 2023, Plaintiff was a student at King/Drew Magnet High School of Medicine and Science, a school within defendant Los Angeles Unified School District ("District"). Plaintiff alleges that, on September 11, 2023, Plaintiff was assaulted by a fellow student. Plaintiff alleges that staff members of the school failed to adequately supervise Plaintiff, failed to administer medical care of Plaintiff after the incident, and failed to timely notify Plaintiff's parents that he was assaulted.

2.

Discussion

a. Motion to Compel Further Responses to Deposition Questions

Plaintiff moves to compel

further responses from District's retained expert, Dr. Anita Herrera-Hamilton, to deposition questions. Plaintiff contends that Dr. Herrera-Hamilton refused to answer discoverable questions during her deposition. In opposition, District contends that the parties have already stipulated, and the court has entered an order, that access to the testing data and related testimony would be limited to designated and professionally qualified experts.

A party may move to

compel a further answer when a deponent fails to answer a deposition question.

(Code Civ. Proc., § 2025.480, subds. (a), (b).) If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the

deposition. (Id.,
subd. (i).)

Plaintiff contends that

Dr. Herrera-Hamilton refused to answer questions concerning which performance validity tests Plaintiff passed or failed; Plaintiff's performance data; the cutoff score Dr. Herrera-Hamilton used for each test; the adjusted cutoff score for an examinee with an intellectual disability; and the task demands of the tests. However, District contends and Plaintiff concedes that the parties have agreed to provide further discovery as to Plaintiff's performance data and which tests Plaintiff passed or failed. Therefore, at issue are the cutoff scores that were used, the adjusted cutoff score, and the task demands.

On July 24, 2025, the court entered an order granting District's application to compel an independent medical examination of Plaintiff, pursuant to the terms of a stipulation between the parties. The stipulation stated that "[a]t the conclusion of any testing of Plaintiff by Dr. Herrera-Hamilton, a copy of the actual test pages, raw data generated and all test results regarding Plaintiff shall be provided to Plaintiff's expert... With respect to the raw data generated and all test results regarding Plaintiff (hereinafter "Data"), the parties mutually agree to the following:... Access to Data and testimony concerning Data is limited to experts designated by the parties who are professionally qualified to use and interpret the Data." (Stein Decl., Ex. 1.)

It is apparent, and

conceded by Plaintiff, that the test information at issue constitutes Data within the meaning of the joint stipulation, and is therefore subject to this provision. Plaintiff contends that the stipulation's statement that "Access to Data and testimony concerning Data is limited to experts designated by the parties" is properly interpreted as concerning two separate subjects; that is to say, "access to Data" and "testimony concerning Data." Plaintiff contends that, therefore, any testimony from Dr. Herrera-Hamilton, as a designated expert, is proper. Plaintiff misinterprets the language of the stipulation. It is apparent to the court that the parties' meaning in setting forth this language was that access to Data and access to testimony concerning Data would be limited to designated experts, not that access to Data would be so limited and that only experts could testify concerning Data but that the expert testimony would be fully accessible non-experts, even where the testimony itself exposed Data and thereby provided access to it.

District contends that all raw data, testing materials, and results, including the information at issue in this motion, were provided to Plaintiff's designated expert. Therefore, District has complied with the terms of the court's July 24, 2025 order.

The court will therefore deny Plaintiff's motion to compel further responses from Dr. Herrera-Hamilton to deposition questions.

b. Sanctions

District requests monetary sanctions against Plaintiff in the amount of \$6,107.40, based on attorney Shiva E. Stein's hourly rate of \$377 across 11.2 hours spent preparing the opposition, three hours in meet-and-confer correspondence, and an anticipated two hours to attend the hearing.

Code of Civil Procedure § 2023.030 provides that, "[t]o the extent authorized by the chapter governing any particular discovery method . . . , the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose . . . [monetary, issue, evidence, or terminating] sanctions against anyone engaging in conduct that is a misuse of the discovery process"

Monetary sanctions shall constitute reasonable expenses, including attorney's fees incurred as a result of the sanctionable conduct. (Code Civ. Proc., § 2023.030, subd. (a).) Monetary sanctions are mandatory in connection with a motion to compel further responses to deposition questions, unless the court finds that the offending party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code of Civ. Proc. § 2025.480, subd. (j).)

There is no indication that Plaintiff had substantial justification to bring the instant motion or that other circumstances make the imposition of sanctions unjust. Plaintiff was fully aware of the stipulation between the parties and nonetheless chose to file the instant motion. Sanctions are therefore warranted against Plaintiff.

The court finds the

requested hourly rate to be reasonable. The court finds the requested hours to be unreasonable and will reduce them accordingly. The court will therefore award monetary sanctions in a total of \$4,524, which the court finds to be reasonable under the circumstances.

3.

Conclusion

Based

on the foregoing, the court DENIES Plaintiff's motion to compel further responses from Dr. Herrera-Hamilton to deposition questions.

The

court GRANTS District's request for monetary sanctions against Plaintiff in the amount of \$4,524, to be paid not later than September 3, 2026.

Plaintiff is ordered to give notice.

IT IS SO ORDERED.

DATED: August 3, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court